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Who should be considered ‘Indigenous’? A survey of ethnic groups in northern Thailand

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On 22 May 2014, the Thai military conducted a *coup d'état* and discarded the previous constitution. In April 2015, a new draft constitution was prepared. Although eventually rejected by the military, it represented an exciting moment for activists, as it recognized the existence of ‘indigenous peoples’ (referred to as *chon pheun muang* in the draft). This prompted us to conduct interviews in 2015–2016 with people belonging to four different ethnic groups and living mainly in Chiang Mai province, northern Thailand: the Lua, Khon Muang, Hmong, and Lisu, in order to determine their understandings of who should be considered ‘indigenous peoples’, and what rights should they have. The findings indicate that there is considerable variation amongst people regarding the meaning of the term ‘indigenous peoples’; who should be considered indigenous; and what rights those defined as being indigenous should be entitled to.

Keywords: ethnic groups; indigenous peoples; indigeneity; Thailand

Introduction

On 22 May 2014, the Thai military, under the leadership of General Prayuth Chan-o-cha, commander of the Royal Thai Army, implemented a *coup d'état* and brought down the previously democratically elected government led by the Pheu Thai Party, in the name of the National Council for Peace and Order (NCPO). This was the latest of many coups that have occurred in Thailand since the absolute monarchy ended after the first coup in 1932. As part of this transition, the NCPO invalidated the 2007 constitution, which was created after the previous military coup was orchestrated against Thaksin Shinawatra and his Thai Rak Thai Party in 2006.¹

On 17 April 2015, almost 11 months after the latest coup, a new draft constitution was unveiled by a NCPO-appointed committee led by Bowornsak Uwanno.² This draft was eventually rejected by the military, even before being voted on by the Thai people via a national referendum. Instead, a second draft was released on 23 January 2016, and it was eventually approved through a referendum organized on 7 August 2016. However, the 2015 Bowornsak draft, although widely criticized for strongly reducing the democratic nature of the political system in Thailand and increasing the role of Thailand’s military,³ nevertheless represented an exciting moment for some indigenous peoples’ rights activists, especially those from various ethnic minority groups in northern

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Thailand. This was because Article 83(5) of the draft, for the first time in the history of Thailand, recognized the existence and the need to protect the rights of ‘indigenous peoples’ (referred to as *chon pheun muang* in the draft⁴). An unofficial translation of the relevant article of the draft reads as follows:

The government must promote and strengthen the following local groups: ... (5) Protect indigenous peoples and ethnic groups so that they can live in their own individual ways with dignity.

This clause of the draft constitution represented a potentially historic moment because if passed, it would have been the first time that a Thai constitution recognized the existence of indigenous peoples in Thailand. Moreover, the constitution would have required that the specific cultural practices of indigenous peoples be promoted and protected by the government, something that has never been mentioned in Thai law before.

As will be explained in more detail below, the concept of indigenous peoples is highly contested in much of Asia,⁵ including in Thailand, where the government has largely denied the concept of indigeneity in the past.⁶ This is why this particular moment in history seemed so important, even if the draft constitution in question was ultimately scrapped, and the new constitution that has since been adopted makes no specific reference to indigenous peoples.⁷

Nevertheless, when this research was being conceived in 2015, it seemed likely that the 2015 draft constitution would eventually be approved and become the foundational legal document in Thailand. That is what prompted us to conduct the study that this paper is based upon. We wondered in what ways people in Thailand would understand the term ‘*chon pheun muang*’ or ‘*chon phao pheun muang*’ (both can be defined as indigenous peoples, although the latter term is more commonly used by indigenous activists in Thailand). We asked the question, who do people in Thailand think should be considered to be indigenous peoples? We also asked, what rights should be given to those categorized as being indigenous? Although we did not have the resources to conduct a nationwide survey regarding these questions, we felt that investigating the circumstances in Chiang Mai province would be a good start, since many of the key activists promoting indigeneity in Thailand are based in the province.⁸ In addition, the Asian Indigenous Peoples’ Pact, a regional body promoted indigenous issues throughout Asia, is based in Chiang Mai, as is the regional representative of the Denmark-based indigenous support organization, The International Work Group on Indigenous Affairs (IWGIA). This has resulted in there having been more activities promoting the concept of indigenous peoples implemented in the province compared to elsewhere in Thailand.

We decided that it would be useful to survey people belonging to four different ethnic groups in Chiang Mai province: the Lua, Khon Muang, Hmong, and Lisu,⁹ in order to determine the understandings of these people regarding who should be considered indigenous peoples, and what rights should be given to those designated as being indigenous. This paper examines the responses received from people belonging to these different ethnic groups.

The next section reviews the main debates regarding the concept of indigenous peoples in Asia, including those that have emerged in Thailand. The methods used to conduct the fieldwork that this paper is based upon are then introduced. We continue by

presenting the results of the survey by ethnic group. Finally, we discuss these results and provide some conclusions.

'Indigenous peoples' in Asia and Thailand

The concept of indigenous peoples might appear to be obvious to many, and it is indeed widely accepted and understood in many parts of the world, particularly in the Americas and Australia and New Zealand. However, in other countries and regions, it is more frequently contested, including in Asia, where the question of whether the concept is applicable has been referred to as the 'Asian controversy' by Benedict Kingsbury.¹⁰ In fact, even though all the countries of Asia signed onto the historic United Nations Declaration of the Rights of Indigenous Peoples (UNDRIP) in 2007, including Thailand, this does not mean that every or even most national governments in Asia have actually embraced or even marginally accepted the concept of indigeneity in relation to their own countries. Instead, many governments, including those representing China, India, Vietnam, Laos, and Thailand, have adopted positions that have been referred to as being based on the 'salt-water theory'. That is, the governments of these countries accept the relevance of the concept of indigeneity in other countries and parts of the world, especially those where large amounts of White settler colonization occurred, but they deny its relevance in the contexts of their own countries, where there was much less European colonization. Thus, the governments of many Asian countries argue that there are either no indigenous peoples in their countries or that all their citizens are indigenous, since the majority of their citizens originate from Asia, or from the countries where they presently reside.¹¹ One of the major concerns of various governments in Asia is that the concept of indigeneity, as articulated by the United Nations, is based on the idea of 'self-determination'. Strictly defining the term would open up claims for sovereignty by peoples from different groups in ways that are seen by some as threatening to national sovereignty.¹² There have also been concerns that the concept of indigeneity can lead to ethnic-based conflict and violence, something that Tania Murray Li¹³ has warned of in the context of Indonesia. Still others, on a more global scale, have raised concerns about the concept of indigeneity actually reifying ideas related to unchanging primitive peoples, thus leading to what Adam Kuper¹⁴ has called 'the return of the native'.

Despite these varied concerns and trepidations, however, and the fact that a number of governments in Asia continue to reject the concept of indigeneity in relation to their own countries, there has been a considerable expansion of the concept of indigeneity in Asia in recent years, by governments, nongovernment organizations (NGOs), and civil society more generally. Indicative of this, a number of national governments in Asia have variously accepted the concept of indigeneity for their own countries over the last few decades, including the Philippines, Taiwan (Republic of China), Japan, Cambodia, and Nepal.¹⁵ In addition, indigenous movements in many other countries in Asia have experienced considerable growth and acceptance in recent years,¹⁶ including in Thailand¹⁷ and Laos,¹⁸ even if the national governments of those countries continue to reject the applicability of the concept for their countries.

It is also crucial to point out that in the particular context of Asia, the idea of indigeneity has been reconceptualized by some scholars and activists over the last couple of decades. While the concept of indigeneity was historically based only on the idea of

‘original’ or ‘first peoples’ – an idea that remains central to many indigenous activists – in 1995, Andrew Gray from IWGIA proposed that indigeneity in Asia be considered to apply to ‘first peoples’, but more crucially, also to ‘colonized peoples’ more generally. This was done to accommodate particular groups of people who were historically oppressed by other groups, which variously forced or compelled them to migrate to places or countries where they are not the first inhabitants but are minorities who have been oppressed, dominated, or colonized over history.¹⁹

Thailand has a long history of ‘Othering’ its ethnic minorities based on perceived racial and ethnic differences,²⁰ and those classified by the Thai government as ‘hill tribes’ (*chao khao* in Thai) have long had to face various forms of discrimination, particularly in relation to their livelihood practices, including in relation to the forms of swidden agriculture that they have practiced.²¹ Moreover, Thailand’s legal system is not set up to appropriately handle racial discrimination, since it is not recognized in domestic legislation, and is only broadly included in the constitution, through the declaration that all Thais are considered equal under the law.²²

The prevalence of discrimination against upland minorities in Thailand, and the lack of legal mechanisms to address pervasive and long-standing discrimination problems, has led to some efforts to increase rights and recognition, spearheaded in northern Thailand by NGOs.²³ These have included contributing to ‘shadow reports’ to the United Nations and other international groupings, in which racial discrimination in Thailand has been highlighted.²⁴ Moreover, the roles of NGOs in pushing for the rights of historically upland minorities have gradually increased in recent years, as has the position of allied academic bodies, such as the Center for Ethnic Studies and Development (CESD) at Chiang Mai University. This has especially been the case since the Tribal Research Institute, a government body created in 1965 to address ‘problems’ related to upland ethnic minorities, was dissolved in 2002 without a proper hand-over of its work to another government agency.²⁵ NGOs in northern Thailand and allied academics have especially pushed for increased rights related to land and forest management, as well as cultural rights, including the right to be at least partially educated in their own languages.²⁶

The 1997 constitution of Thailand, widely known as the ‘people’s constitution’, was created through a much more participatory and deliberative process than any other constitutions adopted before or since it became the core legal document of the country. One important aspect of the 1997 constitution was that it was the first to adopt the concept of legal pluralism, something that did not exist in previous Thai constitutions but has been included in subsequent constitutions to varying degrees. For example, the most recent Thai constitution divides ‘local culture’ into state responsibilities and individual/communal rights.²⁷ However, despite this, Thai governments have frequently confused the concepts of autonomy and independence, thus resulting in measures related to indigeneity and gaining partial autonomy frequently being viewed by the Thai state as a threat to the sovereignty of the nation. This may have been the reason why the concept of indigeneity was not included in the most recently approved constitution. Indeed, the only other community in Thailand ever to be considered for special constitutional status in Thailand was the Thai-Malays, through the concept of Pattani Metropolis, which was proposed by the former Thai army commander and politician Chavalit Yongchaiyudh in 2004. It would have allowed for an upgraded form of provincial administration, including the southernmost Thai provinces of Pattani, Yala, and Narathiwat, and would have

been a limited step toward devolving government powers to local actors. However, it too was ultimately not adopted.²⁸

One important difference between Thailand and many other countries in Asia was that while countries such as Laos, Cambodia, Vietnam, China, and others were all concerned about encouraging ethnic minorities living within their territories to feel as if they were a part of each respective nation, in Thailand, this idea has not developed nearly as strongly. In the 1950s, for example, the government of Laos introduced terms to link minorities to the nation state, such as '*Lao Loum*' (Lowland Lao), '*Lao Theung*' (Midland Lao), and '*Lao Soung*' (Upland Lao).²⁹ Similarly, in the 1950s in Cambodia, the government introduced the terms '*Khmer Loeu*' (Upland Khmer) and '*Khmer Islam*' (Islamic Khmer) to try to link its minorities to the nation.³⁰ In Thailand, however, the tendency has been more to label other upland peoples as 'non-Thais' through using the term '*chao khao*' (hill tribe) to describe them.³¹ Although later the term '*chao Thai phu khao*' (Thai mountain people) was recommended as an alternative by the King of Thailand in the early 1970s,³² the term never caught on, and it has not been widely adopted. Instead, much more effort has been put into promoting the idea of a single standard 'Thai' subject, one modeled on people in Central Thailand.³³ We will return to the significance of this point in the conclusion of this paper.

Indeed, the term '*chao khao*' (hill tribe) remains the most commonly used term for upland minorities in Thailand today. Although its use was discontinued officially by the government for almost a decade,³⁴ in 2015, its official use was reintroduced by the military government of Thailand, although the term remains contested by many upland ethnic minorities.

One of the terms that people were asked about during this study is '*chattiphan*', which is the term presently used in Thai language to refer to 'ethnic group'. However, this term is relatively new for Thailand, as it was just invented in the 1980s, and only started being used in the late 1980s and early 1990s.³⁵ This being the case, it should not be surprising that many people might not be familiar with this relatively recently invented term in Thai.

Prior to the 1980s, the modern concept of indigeneity was hardly understood in Thailand, although ethnic differences were well recognized. However, beginning in the 1980s, the concept of indigeneity began to become known in Thailand, originally by activists from other parts of Asia and the world who were living in Thailand, later to Thai scholars and activists, and eventually to leaders, especially those working for NGOs from indigenous minority groups themselves. In particular, the movement has grown and gained strength since the 1990s and 2000s, with the concept of indigeneity being developed and promoted by those self-identifying as indigenous peoples, and also by allied Thai and foreign scholars and activists.³⁶ The first formal celebration of World Indigenous Peoples' Day in Thailand was in 2007, and the day has been celebrated annually every year since then. While those identifying as indigenous have been unable to achieve full government acceptance of the concept of indigeneity in Thailand, they have, nonetheless, achieved various smaller victories (see Table 1 for a list of some of the cabinet resolutions, revisions to Acts, and changes in government regulations that have occurred in recent years), and it cannot be denied that the concept of indigeneity is now much better known and accepted than it was just a couple of decades ago.³⁷ However, there still remain questions regarding the extent to which the common people in Thailand understand and accept the concept of indigeneity, particularly for those outside of

Table 1. Some cabinet resolutions, changes in government regulations, and amendments to Acts in recent years that point to a movement toward increased legal pluralism in Thailand.

Year	Description	Type of Decision
2005	Regarding the strategy to address the problems of status and rights of people, designed to accelerate the process of determining citizenship matters in Thailand	Cabinet Resolution, 18 January 2005
2005	Revised regulations on proof of admission of students into educational institutions in Thailand	Revised Ministry of Education Regulations, 2005
2005	Regarding opening access to schooling in Thailand for children without Thai birth certificates	Cabinet Resolution, 5 July 2005
2008	Revisions to make it possible for children without citizenship to go to school in Thailand	Fourth Amendment of the Nationality Act, 2008
2008	Revisions to make it possible for children without citizenship to go to school in Thailand	Second Amendment of the Civic Registration Act, 2008
2010	Regarding the right to health care for ethnic minorities without citizenship in local hospitals in Thailand	Cabinet Resolution, 23 March 2010
2010	Regarding the restoration of the way of life of the <i>Chao Le</i> (Moken or Sea Gypsies) ethnic group in southern Thailand	Cabinet Resolution, 2 June 2010
2010	Regarding the restoration of the way of life of the <i>Kariang</i> (Karen) ethnic group in western and northern Thailand	Cabinet Resolution, 3 August 2010

scholarly and activist circles. This study is the first to seriously and systematically consider this important topic.

Research methods

A total of 240 people were interviewed for this study, including 60 each from the Lua, Khon Muang, Hmong, and Lisu ethnic groups. The reason we chose these groups is because we wanted to survey one group that can be considered to be an ‘original’ minority ethnic group in Chiang Mai province (the Lua), another group representing the majority of lowland people (the Khon Muang or Yuan people), and two ethnic groups typically considered to be indigenous peoples by Thai and international indigenous activists, but typically not considered to be ‘original’ or ‘first peoples’ to Thailand, because they arrived in the country within the last 100 or so years.

Close to equal numbers of men and women were interviewed from each of the four ethnic groups included in the study. In addition, efforts were made to approximately balance interviewees according to age groups, with about a third of those interviewed being younger people between 15 and 25, another third being middle-aged people

between 26 and 45, and the final third being older people between 46 and 65 years old. In addition, people from both rural and urban areas were interviewed. For the Lua, Hmong, and Lisu ethnic groups, 20 people lived in urban areas, 20 lived in rural areas but without a community representative involved in the indigenous peoples movement, and 20 lived in rural areas and had a community representative involved with the Indigenous Peoples and Ethnic Groups Network of Thailand.³⁸ However, this differed for the Khon Muang, who are the majority ethnic group in northern Thailand (although not in all of Thailand), are not considered to be indigenous peoples by indigenous rights activists in Thailand and beyond, and therefore are not typically included in Indigenous Peoples and Ethnic Group Network activities. Thus, the Khon Muang were not stratified in the same way as the other ethnic groups included in this study. They were just divided by gender and age, rather than in relation to urban and rural or in relation to involvement with the Indigenous Peoples and Ethnic Groups Network of Thailand. The education levels of the people interviewed ranged widely from gaining no formal education at all to having over a Bachelor's university degree. See Table 2 for more details regarding the people interviewed for this study.

The field research was mainly conducted in Chiang Mai province. Interviews were done in Chiang Mai City (Muang district), and a number of villages in Hang Dong district, Saraphi district, Mae Rim district, Sankampheng district, Sansai district, Samoeng district, Hot district, Chiang Dao district, and Mae Teng district. In addition, a small number of interviews with ethnic Lua people were conducted at La-Oop Village, Mae La Noi district, Maehongson province, not far from Chiang Mai province (Figure 1), since it was not possible to find Lua people involved in the indigenous movement in Chiang Mai province itself. Indeed, many of the people there feel that Chiang Mai is their forefathers' original homeland. Due to space limitations, we do not delve into details regarding the make-up of the communities and differences in responses

Table 2. Statistics about people interviewed for the study.

Category	Lua	Khon Muang	Hmong	Lisu
<i>Type of village</i>				
City people	20	60 total	20	20
Rural people	20	0	20	20
Rural people involved in Indigenous Network	20	0	20	20
<i>Sex</i>				
Male	30	30	30	24
Female	30	30	30	36
<i>Age group</i>				
15–25 years old	18	20	20	18
26–45 years old	20	20	21	23
46–65 years old	22	20	19	19
<i>Citizenship</i>				
Has Thai citizenship	100%	100%	100%	81.7%
<i>Education background</i>				
No formal education	8	1	12	17
Education below high school	20	25	20	25
End of high school or technical college	19	11	10	16
Bachelor's university degree or higher	13	23	18	2

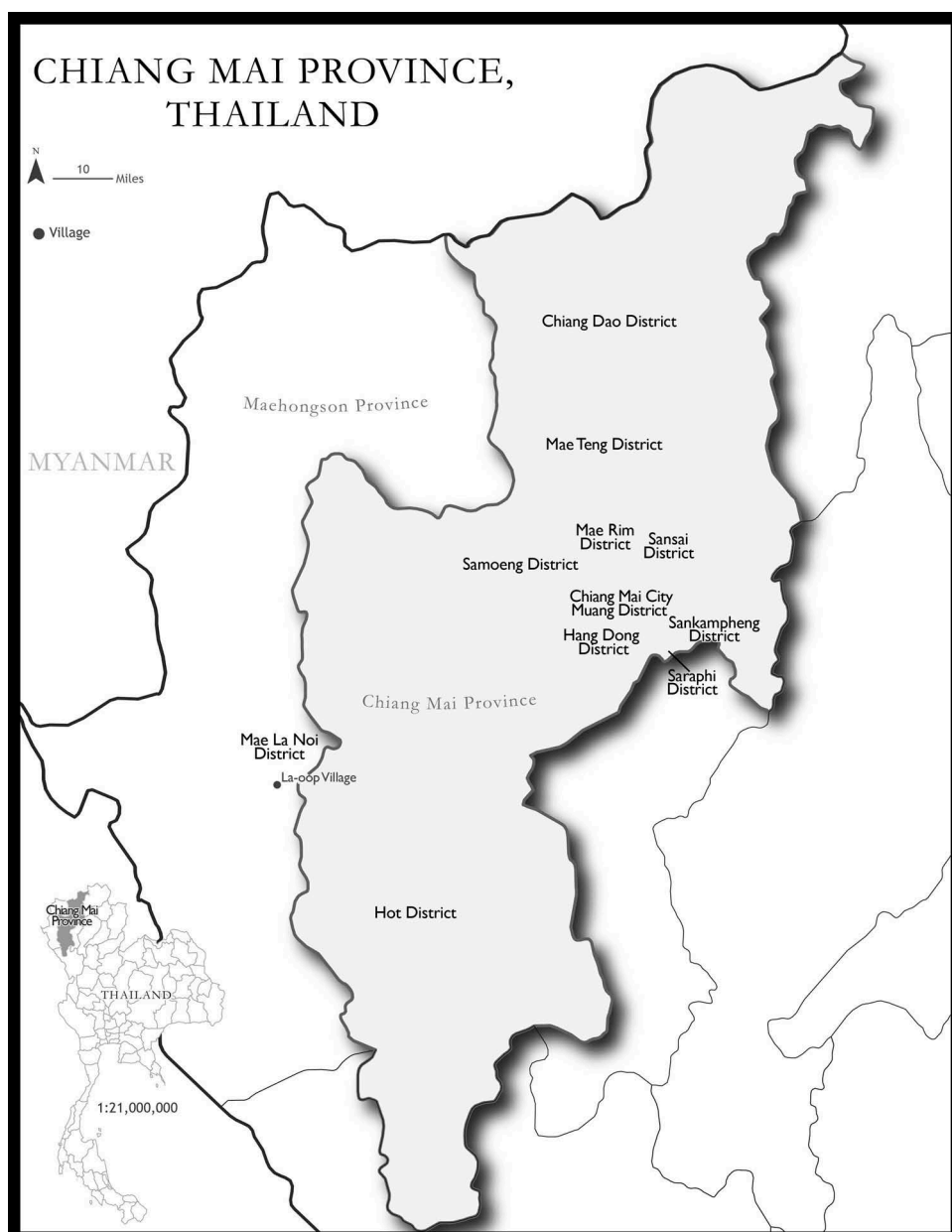


Figure 1. Study area in Thailand.

based on gender, age, and involvement in indigenous activist activities. Instead, these issues will be fleshed out in another paper that we are presently working on.

The interview guide/questionnaire that was used for this study was prepared jointly by all three authors. We are unaware of any qualitative studies regarding understandings of indigeneity having been conducted in other countries in Asia, so we were not able to benefit from insights from such studies. The third author conducted all of the interviews.

Since she is Hmong, some of the interviews with Hmong people were partially conducted in Hmong. Others were done partially in the regional dialect of Khon Muang people, which she also speaks. The rest of the interviews were conducted in central Thai. Some of the older Lua in La-Oop Village and especially the older Lisu participants living in rural areas did not know Thai well enough to understand some of the specific vocabulary included in the questions. The interviews were all conducted between August 2015 and April 2016. People approached to be interviewed were given the option to not participate in the study. Some chose not to, and once they decided not to, they were not pressured to continue the discussion.

After fieldwork was completed, the quantitative data from the interviews/surveys were compiled using the SPSS computer program. Further analysis was done after the statistical data became available.

The authors are aware that this study may, to a certain extent, be conflating ability in Thai with lack of specific terminology. However, the study raises the issue that large numbers of Thai citizens have very low knowledge of the terms ‘indigenous peoples’ and ‘ethnic group’, including members of those groups, which would substantially detract from promoting the rights of these groups. These issues will be discussed more in a future paper. As a recommendation for further study, one way to assess the extent of this knowledge gap and then rectify it would be a larger, quantitative study, followed by an informational public campaign.

Research findings

The following are the basic findings of the research, organized by ethnic group. We start with the Lua, then the Khon Muang (or Yuan), Hmong, and finally the Lisu.

Lua ethnic group

The Lua people speak a Khmuic Austro-Asiatic language, and people from the Lua ethnic group are generally not thought of as having historically migrated from places now included in other nation states and are often considered to be one of the ‘original ethnic minorities’ or ‘first peoples’ of northern Thailand. Indeed, the Lua played an important role in the rituals conducted by early Lanna kings.³⁹ They are also frequently classified as one of Thailand’s ‘hill tribe’ groups (*chao khao* in Thai) and are recognized as being one of Thailand’s ten upland minority groups. There are approximately 22,260 Lua people in Thailand.⁴⁰ As a minority group, the Lua largely live in the uplands and have a history of being discriminated against or generally oppressed by lowland Thais, including the Khon Muang people, although the relationship between lowlanders and uplanders has generally been a complex one. In any case, the Lua are probably the ethnic group of northern Thailand that most obviously fits the general definition of indigenous peoples, as they are an ‘original’ ethnic minority group that has historically been oppressed by lowland majority peoples, thus meeting all the criteria of ‘colonized’ indigenous peoples.^{41,42}

This being the case, it is not surprising that our survey responses from Lua people show that many believe that they are ‘*chon pheun muang*’ or indigenous peoples. That is, 27 out of 60 respondents, or 45.0% of those questioned, saw themselves as being indigenous. However, based on the responses received, it is evident that many of those who said they were indigenous clearly did not understand the meaning of the term. Some

believed that it referred to whether someone lived in the city ('*muang*' in Thai) or not. Others linked the term to whether they had been granted citizenship in Thailand or not. This is not surprising, as many upland peoples in Thailand – even ones who have lived on Thai soil for many generations – still are not officially recognized as Thai citizens or have only recently been granted Thai citizenship.⁴³ Only a small proportion of the respondents seemed to recognize that '*chon pheun muang*' refers to being members of ethnic minority or upland groups.

Some Lua respondents, as well as some of the respondents from all the ethnic groups interviewed for this study, were confused by the word '*pheun*', as some interpreted it as being related to '*pheun ban*' or local. In fact, the word '*pheun*' is part of the larger term for indigenous peoples and thus should not be understood in that way.

The second largest group of ethnic Lua respondents, representing 24 of 60 interviewees, or 40.0% of those surveyed, stated that they were not '*chon pheun muang*' or indigenous peoples. Instead, they saw themselves as being upland or hill tribe groups (*chao khao* in Thai), or they simply identified as being 'Lua' rather than as being part of the broader identity of indigenous peoples. In addition, five respondents, or 8.3% of those Lua people surveyed, did not understand what '*chon pheun muang*' meant at all or otherwise were confused due to communication problems based on knowledge of Thai language. All those interviewed were selected because they knew a minimum standard of Thai, as evaluated by the third author. In that, our goal was to determine the extent to which informants understood particular terminology, in the case of those who did not recognize or could not even guess at the terms; this effectively ended the interview. Finally, 6.7% of respondents said that they were indigenous because they used to live in the city, but did not now, or because their ancestors used to live in the city. One person interviewed identified the term as referring to the lowland ethnic Khon Muang northern Thai ethnic group.

Overall, the responses received from the Lua suggest that only about 10.0% of the respondents actually understood that they would be classified as indigenous peoples and agreed for themselves to be classified as such. Considering that the Lua are the most obvious group to be considered to be indigenous to Thailand, this is a very low percentage indeed.

Indicative of the above, only 8 of the 60, or 13.3% of respondents, believed that the term '*chon pheun muang*' refers to people from a tribe or ethnic minority. Almost 60.0% thought that '*chon pheun muang*' either refers to all people in Thailand or lowland northern Thai people, known as Khon Muang, a name that is somewhat similar to '*chon pheun muang*'. A little less than 17.0% had no idea what the term meant or were unable to answer due to problems based on a lack of knowledge of specific terminology in the Thai language.

When asked if they thought that people identified as '*chon pheun muang*' or indigenous peoples should have different rights than other people, the vast majority of the respondents disagreed. As with people from other ethnic groups surveyed, many of those questioned thought that '*chon pheun muang*' related to the Thai term '*chon chan*' or 'class'. Some asked why the government had to divide up people according to class. Most stated that they wanted equal rights to others and disagreed with such a classification system. Only 6 of 60, or 10.0% of the people questioned, stated that they wanted particular rights to protect their culture. It is notable that in Thailand, it is common for indigenous peoples activists to state that they do not want special rights for indigenous peoples. They just want the right to have the same privileges as people from the majority

Thai ethnic group, such as being allowed to study in their own language and engage in their own cultural and livelihood practices.⁴⁴

Sixteen of sixty (27.0%) of the respondents seemed to have a general understanding that '*chon pheun muang*' refers to being 'original peoples', or peoples who conserved older traditions. But 45.0% of the Lua respondents thought that the term refers to people who live in the city, and 20.0% admitted to being confused between the terms Khon Muang and '*chon pheun muang*'.

One-third of the Lua respondents (20 out of 60) had heard of the Indigenous Peoples and Ethnic Groups Network of Thailand, and about 20.0% (12 out of 60) reported having participated in some sort of meeting or event associated with the network, either in their own villages or at other larger meetings and events outside of their villages. This is notable, as less people seemed to clearly understand about the concept of indigeneity than had actually participated in the network.

Lua people surveyed understood the term '*chattiphan*' (ethnic group) a little better than '*chon pheun muang*', but as this term has only been introduced widely in Thailand over the last few decades, it is still not well known. In fact, only 15 of 60 people, or 25.0% of the Lua respondents, understood that it relates to hill tribes, ethnic groups, or ethnic minorities. The rest reported not understanding what it meant. This is interesting, as the term *chattiphan* is the term that the Thai government officially recognizes as referring to ethnic group.⁴⁵

Khon Muang ethnic group

The Khon Muang (or Yuan) people are a largely lowland ethnic group, one that speaks a language (*kam muang* or *yuan*) in the Tai-Kadai family that is officially the northern Thai dialect of the Thai language.⁴⁶ As already mentioned, this group is the majority ethnic group in northern Thailand and is typically not characterized as being indigenous by scholars or Thai or international activists for indigenous rights. They are never referred to as 'hill tribes' or '*chao khao*' in Thailand. The population of Khon Muang people is difficult to estimate, but they make up the majority of the 11.75 million people living in northern Thailand.⁴⁷

Interestingly, however, despite the above, 55 of the 60, or a very high 91.7% of Khon Muang respondents, recognized themselves as being '*chon pheun muang*' (indigenous peoples). This is probably because '*chon pheun muang*' is somewhat similar to '*Khon Muang*' (Muang people; both have the word '*muang*' in them). Even some of those who do not think they are indigenous peoples seemed to have a similar idea. Moreover, only 4 of the 60 respondents (6.7%) thought that the term '*chon pheun muang*' refers to some sort of ethnic minority group. Furthermore, 22 out of the 60 Khon Muang respondents (36.7%) stated specifically that ethnic minorities or tribal peoples should not be considered '*chon pheun muang*'. Most of the rest of the respondents were confused about the meaning. The Khon Muang respondents also mainly thought that people from different ethnic groups should not receive different rights. These responses indicate that the majority of Khon Muang people misunderstood the meaning of the term '*chon pheun muang*', at least as understood by the indigenous movement in Thailand.

However, when the term '*phao*' or tribe was added to '*chon pheun muang*' to make it '*chon phao pheun muang*', the term most commonly used for indigenous peoples in Thailand, respondents understood the meaning more clearly, with over 58.0% believing that it refers to ethnic minorities. Another 25.0% were not sure what the meaning was, and only 10 of 60 or 16.7% of the Khon Muang respondents believed that it referred to themselves.

Only 55.0% of all the Khon Muang interviewed had any idea what the term '*chattiphan*' or ethnic group meant, with less than half understanding that it somehow related to ethnicity. Only 13.3% of the Khon Muang interviewed had heard of the Indigenous Peoples and Ethnic Groups Network of Thailand. This is not surprising, considering that indigenous activists do not consider Khon Muang people to be '*chon phao pheun muang*' or indigenous peoples. In addition, only one of the sixty respondents reported having participated in any activities organized by the network, which is also not surprising.

Hmong ethnic group

The Hmong are historically an upland ethnic group, one that speaks the Hmong language, which is in the Hmong-Mien language family.⁴⁸ They are one of the ten government-recognized upland minority groups in Thailand, and it has been estimated that the Hmong population of Thailand is about 153,955.⁴⁹ The Hmong are generally considered to be indigenous peoples by international and Thai scholars and indigenous activists, due to having been oppressed by other groups over history. However, the Hmong are not generally considered to be one of the 'original' ethnic groups of northern Thailand, as most migrated from China via Vietnam and Laos over 100 years ago.⁵⁰ The Hmong interviewed belonged to both the White and Green Hmong subgroups. They speak different dialects of the same language.

The Hmong respondents exhibited a wide range of responses to the question about whether they consider themselves to be '*chon pheun muang*' or indigenous peoples. Twenty-three out of sixty, or 38.3%, said that they are indigenous, but over half of those who indicated that they are indigenous stated that they are indigenous because they have Thai citizenship. Only 10.0% of respondents thought that they are indigenous because of having their own unique culture. Twenty-three out of sixty (38.3%) of the Hmong respondents thought that they were not indigenous because they live in the mountains, are people who have migrated from elsewhere, or because they are members of the Hmong ethnic group. Other respondents either did not understand what the term meant or had various unusual answers.

Only 10.0% of the Hmong respondents thought that were '*chon pheun muang*', but 43.0% thought that they were '*chon phao pheun muang*'. That is, once the word '*phao*' (tribe) was added to '*chon pheun muang*', many more identified with the term. Even then, however, over half remained confused about the meaning of the term.

The vast majority of Hmong respondents do not believe that people classified as '*chon pheun muang*' should have rights any different from others. This is not surprising considering that most Hmong respondents do not consider themselves to be '*chon pheun muang*' but instead think that Khon Muang are '*chon pheun muang*' (33.3%). Another 18.3% said that '*chon pheun muang*' are first peoples only, while 16.7% indicated that people who had their own unique cultures are '*chon pheun muang*'. However, when asked about '*chon phao pheun muang*', 30.0% of respondents thought that it referred to upland minorities. However, other respondents did not understand the term (35.0%).

In relation to rights, 48.3% of Hmong respondents felt that all people should have the same rights. Another 11.7% stated that while Thai law guarantees equality for everyone, in reality, there is still considerable discrimination against some ethnic groups, including the Hmong. Only 6.7% thought that particular cultural rights should be provided, and 3.3% stated that it is not necessary to obtain particular rights, but that it is instead

important for minorities to rely on themselves. Thirty percent of Hmong respondents chose not to respond to the question or did not understand it.

In relation to the term '*chattiphan*', or ethnic group, 35.0% of the Hmong respondents either identified the term as being associated with upland minority groups or with distinct cultural groups. Other Hmong respondents either did not know the term (45.0%) or provided various other responses that did not fit with common NGO or indigenous activist understandings of the meaning of the term.

Seventeen out of sixty Hmong respondents (28.3%) indicated that they had heard of the Indigenous Peoples and Ethnic Groups Network of Thailand, but only 8 out of 60 (13.3%) reported having participated in any activities related to the network. When asked what they thought the Indigenous Peoples and Ethnic Groups Network of Thailand should promote, various answers were provided. However, a third (20 of 60) did not respond effectively, while 18.3% thought that the network should push for equal rights. An equal number thought that the network should help protect culture and history.

Lisu ethnic group

The Lisu language is in the Sino-Tibetan language family,⁵¹ and the Lisu people are generally considered to be indigenous peoples by scholars and international and Thai indigenous activist groups. The Lisu are one of Thailand's ten government-recognized upland minority ethnic groups, and it has been estimated that there are approximately 38,299 Lisu people in the country.⁵² However, unlike the Lua, but similar to the Hmong, they are not generally considered to be one of the 'original' ethnic groups of northern Thailand, as they mainly historically migrated to Thailand from China and Myanmar, although many have lived in Thailand for generations.⁵³ The general education levels of the Lisu interviewed were lower than for people in other groups. This is based on the fact that most Lisu have lower education levels than people from the other ethnic groups.

As with people from the other ethnic groups surveyed for this study, the Lisu were generally quite confused regarding the meaning of the term '*chon pheun muang*', and while 40.0% were somewhat confident that they are '*chon pheun muang*', only 13.3% appear to have understood the term to mean indigenous peoples or peoples with particular cultures. Similarly, only a small percentage (11.7%) thought that the term refers to tribal peoples or minority groups. The others provided various responses, ranging from not knowing (35.0%) to thinking that the term refers to everyone in Thailand (23.3%), to believing that the term refers to Khon Muang or northern Thai lowland peoples, or ethnic Thai people more generally (16.7%). When asked who should not be considered to be '*chon pheun muang*', there was even more variation, with only 5.0% of Lisu respondents indicating that lowland peoples in the majority should not be considered indigenous peoples.

However, more Lisu people understood '*chon phao pheun muang*' to refer to ethnic minorities, probably because of the inclusion of the term '*phao*' or tribe in the term, but even then only 15 out of 60 (25.0%) made this connection.

Not surprisingly, most Lisu respondents did not believe that those classified as '*chon pheun muang*' should be given rights different than other peoples. As with those from the other ethnic groups surveyed, most Lisu respondents stated that the goal should be equal rights.

For the Lisu, the term '*chattiphan*' or ethnic group is not well understood, with 44 out of 60 (73.3%) respondents not knowing the term. Only 15.0% recognized it as relating to hill tribes, ethnic groups, or ethnic minorities. This is despite the fact that 23.0% of the respondents had heard of the Indigenous Peoples and Ethnic Groups Network of Thailand, and 14.6% reporting that they had participated in activities associated with the network, either at the village level or beyond.

Conclusions

The results of the interviews presented above, beyond anything else, clearly indicate that presently there is considerable variation amongst people from all different ethnic groups surveyed regarding what they think the meaning is of the term '*chon pheun muang*' or '*chon phao pheun muang*'. Indeed, one could even say that there is considerable confusion about the meaning of the Thai language terms for indigenous peoples. Moreover, reflecting the considerable differences or confusion regarding what the terms means, there is a lot of differentiation regarding who the people interviewed consider should be recognized as indigenous.

One part of the broad term that appears to have caused the most confusion is '*muang*', which means 'city' or 'urban' in Thai, and is also the same word used to describe the dominant lowland ethnic group in northern Thailand, Khon Muang. For these two reasons, many respondents thought that '*chon pheun muang*' referred to people who live in cities or in urban areas, or who used to live in those areas, while many others thought that the term refers particularly to the Khon Muang ethnic group. That is also why most Khon Muang identified as '*chon pheun muang*'.

Another term that caused confusion is '*pheun*', which was sometimes thought to be associated with '*pheun ban*' or 'local'. Some people also thought, erroneously, that the term referred to '*chon chan*' or 'class'. In addition, when the word '*phao*' was added to the term, to make it '*chon phao pheun muang*', the most commonly used term to describe indigenous peoples in Thailand,⁵⁴ a larger proportion of the respondents identified the term as corresponding with the definition used by indigenous activists and scholars who study indigeneity in Thailand. However, even then, the majority of those interviewed do not understand what the terms mean. This is despite the fact that except for Khon Muang people, who are not typically considered to be indigenous peoples in Thailand, a number of those interviewed from the other three ethnic groups had either heard of the Indigenous Peoples and Ethnic Groups Network of Thailand or had participated in activities organized by the network.

The vast majority of those interviewed from all four ethnic groups do not believe that people from one ethnic group should be provided with different rights to people from other ethnic groups, regardless of the ethnicity of the respondents. The Khon Muang people surveyed generally do not want people from the other three ethnic groups surveyed (the ones typically considered to be indigenous peoples by indigenous activists and scholars of indigeneity in Thailand) to have more or different rights than them. The Lua, Hmong, and Lisu people surveyed also expressed similar views. This probably reflects their diverse understandings of the terms '*chon pheun muang*' and '*chon phao pheun muang*' to begin with, and their concern that the draft 2015 constitution was going to actually provide different or special rights to city people or Khon Muang people, something that would have further marginalized them in society, if that had been the case (which it was not). Moreover, the distaste expressed by many of those interviewed

toward having different rights was almost certainly influenced by the high value that the Thai state has long put on the central Thai model as representing 'Thainess' at its best. Thus, non-Central Thai people in Thailand have long been taught to aspire to be like Central Thais, not to express their differences, even though such differences were often emphasized and used to put them down. So, achieving the goal of being a Central Thai has long been the ideal, although it has not been easy for upland minorities to do so due to various obstacles put up to prevent them.⁵⁵ This being the case, it is not surprising that many of those interviewed expressed a desire for equality between ethnic groups rather than them being given different or special rights, an idea that is pervasive when it comes to global indigenous rights discourses. Indeed, this situation makes adopting the idea of indigeneity in Thailand particularly difficult, as the difference celebrated through the idea of indigeneity is the same type of difference that many upland minorities have been conditioned to believe is undesirable, because it prevents them from being recognized as being like Central Thais, or full Thais.

Although the 2015 draft constitution, which included the term '*chon pheun muang*' was never adopted, and the new constitution no longer uses this term or any other terms that might be seen as referring to indigenous peoples, this study of people from different ethnic groups in Chiang Mai province indicates that even though Chiang Mai is the center of the indigenous movement in Thailand, there is still considerable confusion and misunderstanding in the province regarding the terms that scholars of indigeneity and indigenous activists use to refer to indigenous peoples at present.

This being the case, it seems important that if the indigenous peoples movement is going to gain more support within Thailand in the future, it will be necessary for more efforts to be made to educate the public, including people considered by activists and scholars to be 'indigenous peoples', regarding the meaning of the term '*chon phao pheun muang*', and the implications of adopting such a term, as there is clearly a huge gap between the understandings of scholars and activists, and those of others in Chiang Mai province. It can be expected that there might be even greater confusion in other parts of the country.

Initially, the term '*chon phao pheun muang*' was developed in Thai to fit with International Labor Organization No. 169 (1989), which related to 'indigenous and tribal peoples',⁵⁶ but there might need to be more strategizing done to ensure that the term in Thai language fits better with governmental and general understandings of language in Thailand. It might even be worth considering altering the Thai term for indigenous peoples ('*chon phao pheun muang*' or '*chon pheun muang*') so as to make it easier for people in Thailand to understand in Thai language. For example, removing the word '*muang*' would probably lead to a clearer understanding.

Some lessons could well be drawn from Cambodia, where the term invented by activists and people working for NGOs, there is '*chun chiet doem pheak dich*' in Khmer or 'original minority ethnic group' in English, whereas '*chun chiet doem pheak charoen*' in Khmer or 'original majority ethnic group' is applied to Khmer people. This definition is not seen as denying the 'original' positionality of the majority or dominant Khmer people in the lowlands of Cambodia and so was introduced with relatively little controversy or confusion, which contrasts with the situation in Thailand. This in turn resulted in the term being included in the Land Law (2001) and Forestry Law (2001) of Cambodia soon after it was invented.⁵⁷

Nevertheless, the term '*chon phao pheun muang*' has already been in use in Thailand for quite some time,⁵⁸ and so altering it in the Thai language would certainly cause considerable confusion, at least initially. Still, the results of this study indicate that a lot

of confusion already exists regarding the meaning of ‘*chon phao pheun muang*’ and ‘*chon pheun muang*’, so it might be worth assessing how the creation of a less confusing label for indigenous peoples could pay-off in the medium to long term. However, careful consideration and strategic thinking would be required to ensure that an alternative term in Thai language would be easily understood and would also receive the desired overall support of people in Thailand.

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Notes

1. Mérieau, "Thailand's Deep State".
2. Nilprapunt et al., "Draft Constitution of the Kingdom of Thailand."
3. Crispin, "What Thailand's Rejected Constitution Means".
4. It should be noted that indigenous activists in Thailand typically refer to Indigenous Peoples as '*chon phao pheun muang*', not '*chon pheun muang*' (Morton and Baird 2016; Prasit 2016). Also, activists often prefer to capitalize the first letters of 'Indigenous Peoples'.
5. Kingsbury, "The Applicability of the International Legal Concept"; Baird, "Translocal Assemblages and the Circulation"; Baird, "Indigeneity in Asia".
6. Morton and Baird, "From Hill Tribes to Indigenous Peoples"; Leepreecha, "The Construction and the Movement".
7. Kingdom of Thailand, "Draft Constitution of the Kingdom of Thailand".
8. Ibid.
9. See Schliesinger, *Ethnic Groups in Thailand*; Schliesinger, *Tai Groups of Thailand* for information about the Hmong, Lua, Lisu and Khon Muang ethnic groups.
10. Kingsbury, "The Applicability of the International Legal Concept".
11. Baird, "The Construction of 'Indigenous Peoples'"; Erni, *The Concept of Indigenous Peoples in Asia*.
12. Erni, *The Concept of Indigenous Peoples in Asia*; Karlsson, "Anthropology and the 'Indigenous Slot'"; Bowen, "Should we have a Universal Concept"; Kingsbury, "The Applicability of the International Legal Concept".
13. Li, "Ethnic Cleansing, Recursive Knowledge".
14. Kuper, "Return of the Native".
15. Erni, *The Concept of Indigenous Peoples in Asia*; Baird, "Indigeneity in Asia". However, only one country in Asia, Nepal, has signed and ratified ILO (1989), an international treaty that is designed to ensure self-determination for indigenous peoples, something also promoted in UNDRIP, but with less 'teeth'.
16. Erni, *The Concept of Indigenous Peoples in Asia*.
17. See note 6 above.
18. Baird, "The Construction of 'Indigenous Peoples'".
19. Gray, "The Indigenous Movement in Asia"; Erni, *The Concept of Indigenous Peoples in Asia*.
20. Winichakul, "The Others Within"; Streckfuss, "The Mixed Colonial Legacy in Siam".
21. Forsythe and Walker, *Forest Guardians, Forest Destroyers*; Declore, "The Racial Distribution of Privilege"; Vandergeest, "Racialization and Citizenship"; Delang, "Deforestation in Northern Thailand"; Tungittiplakorn, "Highland-Lowland Conflict".
22. Munger, "Culture, Power, and Law".
23. Sakboon, "Controlling Bad Drugs, Creating Good Citizens".
24. Coalition on Racial Discrimination Watch, "Shadow Report on Eliminating Racial Discrimination".
25. Buadaeng, "The Rise and Fall of the Tribal Research Institute (TRI)".
26. Vaddhanaphuti et al., "Kung Satawat Kanphathana Thisung"; Leepreecha, "The Construction and the Movement".
27. Kingdom of Thailand, "Draft Constitution of the Kingdom of Thailand".
28. Harding and Leyland, *The Constitutional System of Thailand*.
29. Baird, "Translocal Assemblages and the Circulation".
30. Baird, "The Construction of 'Indigenous Peoples'".
31. See note 20 above.
32. Morton and Baird, "From Hill Tribes to Indigenous Peoples".
33. Winichakul, "The Others Within"; Streckfuss, "The Mixed Colonial Legacy in Siam".
34. Buadaeng, "The Rise and Fall of the Tribal Research Institute (TRI)".
35. Vaddhanaphuti et al., "Kan Wichai Thang Chattiphan Nai Lao-Thai".
36. See note 6 above.

37. See note 8 above.
38. At the time of the field research done for this study, the Indigenous Peoples and Ethnic Group Network of Thailand existed, and this was the term used when conducting interviews. However, since then, the name of the network has changed to the Indigenous Peoples Network of Thailand.
39. Rhum, "The Cosmology of Power in Lanna".
40. Rights and Liberties Protection Department (RLPD), *First to Third Periodic Reports of Thailand*.
41. Gray, "The Indigenous Movement in Asia"; Erni, *The Concept of Indigenous Peoples in Asia*; Baird, "The Construction of 'Indigenous Peoples'".
42. Schliesinger, *Ethnic Groups in Thailand*.
43. Flaim, "Problems of Evidence".
44. See note 32 above.
45. See note 8 above.
46. Draper, "The Thai Lao Question".
47. See note 40 above.
48. See note 42 above.
49. See note 40 above.
50. Geddes, *Migrants of the Mountains*; Tapp, *Sovereignty and Rebellion*.
51. Schliesinger, *Ethnic Groups in Thailand*.
52. See note 40 above.
53. Bradley, "Onomastic, Orthographic, Dialectic".
54. See note 6 above.
55. Buadaeng, "The Rise and Fall of the Tribal Research Institute (TRI)".
56. ILO, *Convention Concerning Indigenous and Tribal Peoples*.
57. See note 18 above.
58. See note 6 above.

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